

24AHCV00148 24AHCV00148

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-07-31

Motion: MOTION FOR UNDERTAKING FILED BY CHIH CHEN SHUE, AS TRUSTEE OF THE TANG LANG SHUE FAMILY TRUST

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Case Number: 24AHCV00148 Hearing Date: July 31, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANTONIO GUACHIA CARAC,

Plaintiff(s),

vs.

CONSOLIDATED

DISPOSAL SERVICE, LLC dba REPUBLIC WASTE SERVICES OF SOUTHERN CALIFORNIA,
LLC, et al.,

Defendant(s).

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CASE NO.: 24AHCV00148

[TENTATIVE]

ORDER RE: MOTION FOR UNDERTAKING FILED BY CHIH CHEN SHUE, AS TRUSTEE OF
THE TANG LANG SHUE FAMILY TRUST

Dept.

3

8:30

a.m.

July

31, 2026

Defendant Chih Chen Shue ("Defendant"), as
trustee of the Tang Lang Shue Family Trust, moves for an order directing
plaintiff Antonio Guachiac Carac ("Plaintiff") to post an undertaking to secure
an award of costs in the amount of \$56,370.

Where a plaintiff in an action resides out of the
state, the defendant may, at any time, apply to the court for an order
requiring the plaintiff to file an undertaking to secure an award of costs and
attorney's fees which may be awarded in the action. (Code Civ. Proc., § 1030,
subd. (a).) The motion shall be made on grounds that the plaintiff resides out
of the state and there is a reasonable possibility that the moving defendant

will obtain judgment in their favor. (Code Civ. Proc., § 1030, subd. (b).) The motion shall be accompanied by an affidavit in support of the grounds for the motion and setting forth the nature and amount of costs and attorney's fees the defendant has incurred and expects to incur. (Code Civ. Proc., § 1030, subd. (b).) "The purpose of [CCP § 1030] is to enable a California resident sued by an out-of-state resident to secure costs in light of the difficulty of enforcing a judgment for costs against a person who is not within the court's jurisdiction." (Alshafie v. Lallande (2009) 171 Cal.App.4th 421, 428.)

The moving party is not required to show there is no possibility that an out-of-state plaintiff could win at trial. Rather, moving party is required to show only that it was reasonably possible that they would win. (Baltayan v. Estate of Getemyan (2001) 90 Cal.App.4th 1427, 1432.) For example, presenting a prior arbitration award in favor of moving party could show a reasonable possibility of prevailing at trial. (Shannon v. Sims Service Center, Inc. (1985) 164 Cal.App.3d 907, 914.) If the motion is granted, the plaintiff shall file the undertaking no later than 30 days after service of the court's order requiring it, and if plaintiff fails to file the undertaking within the time allowed, the plaintiff's action shall be dismissed as to the moving defendant. (Code Civ. Proc., § 1030, subd. (d).)

It is undisputed that Plaintiff resides in Guatemala and has lived there since September 2023. Defendant argues there is a reasonable possibility she will prevail in this action because Plaintiff cannot meet his burden of proof. Defendant argues that the work performed by Plaintiff did not require a license and therefore, Plaintiff is an independent contractor, triggering application of Privette v. Superior Court (1993) 5 Cal.4th 689, 692. (Motion, p. 4.) However, Defendant provides no evidence or argument in support of her claim that the work did not require a license; the sole evidence provided includes Plaintiff's discovery responses and deposition testimony that he resides in Guatemala. Defendant also argues in her reply brief that the presence of a triable issue of material fact "automatically" establishes a reasonable possibility of succeeding. (Reply, p. 1.) Defendant fails to cite any legal authority that mere speculation is sufficient to establish the threshold of possibility required to order an undertaking.

Moreover, even if Defendant were able to demonstrate a reasonable possibility of prevailing in this action, Plaintiff argues persuasively that the Court should exercise its discretion to deny the

motion because he is indigent. (Alshafie v. Lallande (2009) 171 Cal.App.4th 421, 429, 434.) Plaintiff returned to Guatemala after the incident because he could no longer work as a result of his injuries and therefore could not afford rent in Los Angeles. (Carac Decl., ¶¶ 3.) Plaintiff's right foot was amputated on January 15, 2023, and he subsequently underwent further amputation, leaving him permanently and completely disabled from performing the type of physical labor he had performed throughout his working life. (Ibid.) Plaintiff had no family in California to support him and had no choice but to return to Guatemala. (Ibid.) Plaintiff declares he cannot afford to post an undertaking because he has no income, savings, or assets. It would be inequitable to require him to post an undertaking based on his out-of-state residency when the reason he lives out of state is due to the alleged negligence of Defendant.

In light of the foregoing, the motion for an undertaking is DENIED.

Defendant to give notice.

Dated
this 31st
day of July
2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.